

TENTATIVE RULING: The petition is GRANTED, including fees as prayed. After a review of the matter, the Court finds the conservator is acting in the best interest of the conservatee. Thus, the matter is set for a biennial review and accounting in two years on September 7, 2028, at 8:30 a.m. in Dept. A. All accounting documents must be filed at least 30 days prior to the hearing. The court investigator shall prepare a biennial investigator report for the next hearing date. The clerk is directed to send notice to the parties.

Based on the report of the court investigator, the Court determines by clear and convincing evidence the conservatee cannot communicate, with or without reasonable accommodation, a desire to participate in the voting process, and orders the conservatee disqualified from voting pursuant to Elections Code section 2208.

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In The Matter of 2012 Irrevocable Matthew L. Gennet Trust

25PR000301

RESPONDENTS MATTHEW L. GENNET AND JON CONHAIM’S MOTION TO
BIFURCATE

TENTATIVE RULING: The matter is continued to October 6, 2026, at 8:30 a.m. in Dept. B. Respondents failed to provide sufficient notice of the motion. (See Code Civ. Proc., §§ 12c, subds. (a) and (b), 1005, subd. (b), and 1010.6, subd. (a)(3)(B).) Electronic service occurred on August 13, 2026. The last day for service was August 11, 2026. Petitioner raised an objection to the defective notice in opposition. Petitioner specifically indicated the substantive response on the merits did not constitute waiver or consent to the hearing as noticed. Petitioner requested a continuance. (Opp., pp. 3-8.) Respondents acknowledged the deficiency in their reply and contend there was no prejudice to petitioner due to the improper notice as petitioner was able to file a substantive response. Respondents, however, cite no applicable authority to support their contention. Because petitioner has not waived the defective service, the Court is without jurisdiction to hear the motion and has not reviewed the merits. (*Diaz v. Prof. Cmty. Mgmt., Inc.* (2017) 16 Cal.App.5th 1190, 1204-05 [“The court lacks jurisdiction to rule on a motion that has not been properly noticed for hearing on the date in question.”].) As respondents did not respond to the request for a continuance in the reply, and there is no evidence the parties met and conferred on the issue, the proper remedy is an entirely new notice period.

Respondents are directed to: (1) prepare an amended notice containing the continued hearing date and comply with Local Rule 2.9 as to the tentative ruling system; (2) provide timely service of the amended notice and all moving papers; (3) file a proof of service pursuant to California Rules of Court, rule 3.1300, subd. (c); and (4) review the local rules.

Petitioner is granted leave to file and serve an amended opposition no later than September 22, 2026. The amended opposition must be a complete and self-contained opposition and not simply an addendum to the August 24, 2026 opposition. The amended opposition must comply with all procedural requirements for oppositions to motions. The Court will disregard the previous opposition. Respondents are granted leave to serve and file, no later than September 29, 2026, a complete and self-contained amended reply complying with all procedural

requirements for replies in support of motions. The Court will disregard the August 28, 2026 reply.

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Estate of Ann Morrow Roberts

26PR000165

PETITION FOR PROBATE OF LOST WILL AND FOR LETTERS TESTAMENTARY
AND AUTHORIZATION TO ADMINISTER UNDER THE INDEPENDENT
ADMINISTRATION OF ESTATES ACT

TENTATIVE RULING: The petition is GRANTED. Michael Torr is appointed as the probate referee. The matter is set for a Status Hearing Re: Final Distribution on September 7, 2027, at 8:30 a.m. in Dept. B. The hearing may be vacated or continued without appearances needed if, prior to that date, the personal representative files a petition for an order for final distribution or a report of status of administration pursuant to Probate Code section 12200. The clerk is directed to provide notice to the parties.

CIVIL LAW & MOTION CALENDAR – Hon. Robert Stamps, Dept. C (Historic Courthouse) at 8:30 a.m.

Dana Maria Sepulveda Morales v. David S. Kim et al

25CV001559

PLAINTIFF DANA MARIA SEPULVEDA’S MOTION FOR APPROVAL OF PRIVATE
ATTORNEYS’ GENERAL ACT SETTLEMENT

TENTATIVE RULING: The matter is continued to October 6, 2026, at 8:30 a.m. in Dept. B. The moving party failed to provide sufficient notice of the motion. (See Code Civ. Proc., §§ 12c, subds. (a) and (b), 1005, subd. (b), and 1010.6, subd. (a)(3)(B).) Electronic service occurred on August 13, 2026. The last day for service was August 11, 2026. Because the other parties have not waived the defective service, the Court is without jurisdiction to hear the motion. (*Diaz v. Prof. Cmty. Mgmt., Inc.* (2017) 16 Cal.App.5th 1190, 1204-05 [“The court lacks jurisdiction to rule on a motion that has not been properly noticed for hearing on the date in question.”].) The moving party is directed to provide timely service of the moving papers and to file proof of such service. The moving party is instructed to review the local rules and comply with Local Rule 2.9 with the amended notice. The moving party may also want to consider making sure the approximate size of the class of PAGA Members is presented clearly via declaration.

GUARDIANSHIP CALENDAR – Commissioner Douglas Skelton, Dept. 6 (Criminal Courts Bldg. – 1111 Third St.) at 2:00 p.m.

Guardianship of Juan Pablo Garcia Rodriguez et al

26PR000108

[1] PETITION FOR APPOINTMENT OF GUARDIAN

[2] PETITION FOR SPECIAL IMMIGRANT JUVENILE FINDINGS